

KAVANAUGH, J., concurring in part

*wright*, 372 U. S. 335 (1963); *Baker v. Carr*, 369 U. S. 186 (1962); *Mapp v. Ohio*, 367 U. S. 643 (1961); *Brown v. Board of Education*, 347 U. S. 483 (1954); *Smith v. Allwright*, 321 U. S. 649 (1944); *West Virginia Bd. of Ed. v. Barnette*, 319 U. S. 624 (1943); *United States v. Darby*, 312 U. S. 100 (1941); *Erie R. Co. v. Tompkins*, 304 U. S. 64 (1938); *West Coast Hotel Co. v. Parrish*, 300 U. S. 379 (1937).

The lengthy and extraordinary list of landmark cases that overruled precedent includes the single most important and greatest decision in this Court's history, *Brown v. Board of Education*, which repudiated the separate but equal doctrine of *Plessy v. Ferguson*, 163 U. S. 537 (1896).

As those many examples demonstrate, the doctrine of *stare decisis* does not dictate, and no one seriously maintains, that the Court should *never* overrule erroneous precedent. As the Court has often stated and repeats today, *stare decisis* is not an "inexorable command." *E. g., ante*, at 105.

On the other hand, as Justice Jackson explained, just "because one should avoid Scylla is no reason for crashing into Charybdis." Jackson, *Decisional Law and Stare Decisis*, 30 A. B. A. J. 334 (1944). So no one advocates that the Court should *always* overrule erroneous precedent.

Rather, applying the doctrine of *stare decisis*, this Court ordinarily adheres to precedent, but *sometimes* overrules precedent. The difficult question, then, is when to overrule an erroneous precedent.

To begin with, the Court's precedents on precedent distinguish statutory cases and constitutional cases.

In statutory cases, *stare decisis* is comparatively strict, as history shows and the Court has often stated. That is because Congress and the President can alter a statutory precedent by enacting new legislation. To be sure, enacting new legislation requires finding room in a crowded legislative docket and securing the agreement of the House, the Senate (in effect, 60 Senators), and the President. Both by design and as a matter of fact, enacting new legislation is difficult—